



POLICE DEPARTMENT

September 8, 2025

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	C-031422
Police Officer Kyron DeLaRosa	:	
Tax Registry No. 960431	:	
Highway Unit 1	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Ashley Baxter, Esq.
Jordan Diamond (*Law Student Practitioner*)
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Stuart London, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:
HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

1. Police Officer Kyron DeLaRosa, on or about July 9, 2022, at approximately 1400 hours, while assigned to the 47 Precinct and on duty, in the vicinity of [REDACTED] Bronx County, wrongfully used force, in that PO DeLaRosa used a non-lethal restraining device on [REDACTED] by tasing him in prong mode for third and fourth cycle without police necessity. *(As amended)*

P.G. 221-01, Page 3, Prohibition 2

FORCE GUIDELINES

P.G. 221-08

USE OF CONDUCTED
ELECTRICAL
WEAPONS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 23, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. The CCRB introduced into evidence the hearsay statement that [REDACTED] ("Complainant")¹ made to their investigators along with video footage and other documents. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

On July 9, 2022, Respondent and other officers were called to [REDACTED] to assist agents and officers from the Federal Bureau of Investigations ("FBI") and the New Rochelle Police Department who were attempting to apprehend the perpetrators of an earlier armed carjacking. They had pursued the suspects into the apartment and were requesting back up

¹ Complainant was sixteen years old at the time of the incident; his mother, [REDACTED] made the CCRB complaint on his behalf.

from the NYPD. Complainant and several other people were inside. The facts in this matter are largely undisputed.

Respondent arrived at the residence at approximately 1335 hours. He remained outside for two minutes, then went in through the open front door. Complainant was inside struggling with three law enforcement officers. Specifically, Complainant was resisting their attempts to place him into handcuffs by pulling his arms out of their grip, bending at the waist, and twisting away from them. Two dogs were in the room barking and coming close to the group. Respondent approached Complainant with his Conducted Electrical Weapon (hereinafter "Taser") in drive stun mode.² He pressed it to Complainant's back and pulled the trigger. Complainant screamed and fell away from Respondent and the Taser lost contact.

Complainant quickly got back to his feet and continued to fight with the other officers. The group moved into the hallway towards the front door. Complainant threw himself toward the ground, pulling the other three officers with him. Several of the officers were ordering Complainant to put his hands behind his back. Respondent attached a cartridge to the front of his Taser and after several seconds deployed the metal probes. When the probes hit Complainant in the stomach and chest Respondent administered a five second current of electricity. Respondent pulled the trigger a second time as the other officers pulled Complainant to his feet and moved him closer to the front door. Complainant continued to actively resist, and the larger dog remained in close proximity. The officers were eventually able to handcuff Complainant immediately outside of the front door.

It is undisputed that Respondent pulled the trigger of the Taser, when it was in prong mode, a total of four times. Complainant was taken to the hospital to have the Taser prongs

² Drive stun mode, also known as "dry stun" mode, occurs when the front electrodes of the CEW are pressed directly against a person's body or clothing to deliver a shock. (See P.G. 221-08, page 2)

removed from his body. The CCRB alleges that the use of the third and fourth cycles constituted a wrongful use of force because officers had control of Complainant when they were administered. Respondent argues that Complainant was still actively resisting arrest at the time the third and fourth cycles were deployed. In addition, he contends that during the second cycle, one of the wires connecting the prong was dislodged rendering the third and fourth trigger pulls ineffective. (Tr. 21-36, 42, 48, 50-51; see CCRB Ex. 2, *Complainant's CCRB interview*, at 11-17, 18-19, 37-38; CCRB Ex. 3, *Respondent's CEW data sheet*; CCRB Ex. 5, *Respondent's body-worn camera footage*, at 02:25-03:45; CCRB Ex. 6, *Respondent's body-worn camera footage at .50 speed*)

Complainant did not appear before the tribunal to give his version of events. Instead, CCRB entered into evidence the audio recording and transcript of his November 30, 2022, telephone interview with CCRB investigators. It is well-settled that hearsay evidence is admissible in administrative proceedings and may form the sole basis for a finding of fact. However, the hearsay must be evaluated to determine whether it is sufficiently reliable. In the absence of live testimony from Complainant, I carefully considered his prior statement in conjunction with the other evidence presented at trial.

During the interview, Complainant recalled that at approximately 1400 hours on the date in question, he was playing a video game in his apartment with his cousin's friend when he heard banging at the front door. Complainant remembered that he went to identify the source of the noise and discovered police officers at the door. He stated that instead of opening the door, he went to his bedroom to call his mother. Complainant described seeing through a window that two or three police officers were in his backyard with their weapons drawn; they then directed him to "freeze." (CCRB Ex. 2 at 11-17, 22)

Complainant told the investigator that the officers kicked down the front door and “four or five” came into the apartment. Complainant recounted that he was standing at the end of the hallway when they came in and he observed that some of the officers had their weapons out. According to Complainant, an officer ordered him to exit the residence while others began searching the various rooms. Complainant contended that he tried to communicate with the officers, but they would not listen to him. He alleged that he attempted to leave the apartment, and an officer grabbed him right above his elbows and informed him that he was under arrest. Complainant described the officer forcing him to the floor while telling him to place his hands behind his back. (CCRB Ex. 2 at 21-23, 30, 33, 46)

Complainant admitted that he attempted to break free from that officer’s grasp and other officers arrived and tried to pin him to the floor. Once on the floor, complainant described feeling a knee on the middle of his back and hearing someone behind him say, “Stop! Cooperate or he’s going to tase [you].” Complainant recalled that he was trying to get the officers off him as they pulled his arms. He explained that he was then tased on his back. After the initial tasing, Complainant alleged that he stopped struggling and the officers picked him up onto his knees. In spite of this, he remembered the officers urging him to stop resisting, threatening further tasing if he did not comply. Complainant acknowledged that he continued to pull his arms away because the officers were hurting him. He characterized his movements as attempts to alleviate the pain, not resist arrest. (CCRB Ex. 2 at 18-19, 28-39)

Complainant recalled seeing Respondent aiming the Taser toward his chest and that he moved to the side, but Respondent tased him before he got out of the way. Complainant described feeling the electric current “for a good few seconds.” He recalled that the other officers picked him up and walked him to the front of his house where they handcuffed him.

Complainant informed the CCRB investigators that “DeLaRosa” was the officer who tased him. When asked how he knew that, Complainant replied that Respondent identified himself to his mother when she asked which officer deployed the Taser. (CCRB Ex. 2 at 37-38, 40-42, 44)

In addition to Complainant’s statements, the CCRB presented footage from Respondent’s body-worn camera that captured the incident. The following is a summary of CCRB’s Exhibit 5:

- 02:36-02:42: Complainant is struggling with three officers; two dogs are barking and jumping at the group. Respondent drive stuns Complainant in the shoulder through his clothing.
- 03:03-03:09: The officers and Complainant stumble into a narrow hallway, with one dog still barking and jumping. Respondent shines the warning light from the Taser on Complainant and deploys the prongs toward his torso. Complainant screams. A steady five second electrical noise is heard.
- 03:09-03:14: There is a quick pause in the sound from the Taser, and it begins again. The three officers, Complainant and the dog move out of the hallway. Complainant is still actively resisting. Respondent follows still holding the Taser from which wires can be seen stretching towards Complainant. The noise coming from the Taser is slower, less steady, and quieter.
- 03:14-03:24: Complainant and the officers approach the apartment’s open front door. Complainant’s arms are behind his back. He continues to pull them away and remains uncuffed. The slow-paced noise is again heard from the Taser.
- 03:30-03:40: The group is in the doorway. Complainant is continuing to attempt to move away from the officer. The slow-paced noise emanates from the Taser. After it ends, one of the officers yells “he’s cuffed.” Complainant stops pulling away after being handcuffed.

Respondent testified that on the date of the incident, he responded to a “10-13” call of officers in need of assistance at an address in the Bronx. He recalled arriving and learning that the FBI and the New Rochelle Police Department were in “hot pursuit” of two suspects from a gunpoint carjacking who they had followed to the apartment. Respondent described hearing a

“commotion” and looking into the open door of the residence. He recounted seeing officers trying to place Complainant, who was “actively resisting” into custody. Respondent entered the home to assist the officers. (Tr. 22-23)

Respondent acknowledged that he drive-stunned Complainant on his upper back and estimated that Complainant broke free from the contact after two seconds. Respondent then attached a cartridge and deployed his Taser in prong mode with both prongs hitting Complainant’s torso. (Tr. 23-26)

Respondent explained that once the Taser trigger is pulled, the electrical current “cycle” lasts for five seconds, unless terminated prematurely by the operator. He stated that officers receive annual training in the use of CEWs, and that he has previously deployed Tasers. Based on those experiences, Respondent detailed that a properly deployed Taser, resulting in a complete electrical circuit, produces a “fluid” static sound. He explained that the sound changes to a “skipping” tone if the circuit is broken or the Taser is malfunctioning. In addition, Respondent asserted that if a Taser fails, officers can “try it again to see if it works.” (Tr. 27-28, 32-33, 38,41, 55)

Respondent testified that although the initial prong mode deployment resulted in a successful five second cycle, Complainant continued to actively resist. In an attempt to subdue him, Respondent pulled the trigger for a second cycle and, after a couple of seconds, noticed the skipping sound indicative of malfunction. (Tr. 24, 26, 33)

Respondent testified that he pulled the trigger in prong mode for a third and then a fourth cycle. He maintained that he did so because Complainant was still trying to get away and that malfunctions can occasionally resolve themselves, making the Taser effective again. Respondent

believed the last two cycles had not resulted in a completed electrical circuit, because he continued to hear the “skipping” sound emanating from the Taser. (Tr. 24-28, 44-45)

Respondent stated that, in keeping with NYPD protocol, after Complainant was in handcuffs he went to remove the Taser wires from the prongs, which were still embedded in Complainant’s skin.³ It was then that Respondent realized that the one of the wires had disconnected from the corresponding prong. Respondent stated that this explained the “skipping” sound that began during the second prong mode cycle and confirmed his suspicion that the third and fourth cycles had been ineffective. (Tr. 25-26)

Based on his training and experience, Respondent estimated that Complainant received an electric shock from the Taser for a total of approximately seven seconds, two in drive stun mode and five in prong mode. He acknowledged that officers are expected to give verbal warnings when possible, and that he did not do so. Respondent testified that the Patrol Guide sets forth that, in lieu of a verbal warning, the physical presence of the Taser, coupled with the light that appears when it is activated, may serve as a visual warning. (Tr. 40-41, 51-53)

It is undisputed that Respondent pulled the trigger on the Taser in prong mode a total of four times and that the weapon recorded four cycles lasting for five seconds each. (CCRB Ex. 3) The parties agree that the first two cycles were reasonable based upon Complainant’s continued active resistance to being taken into custody. CCRB has charged Respondent with wrongfully using force against Complainant for the third and fourth cycle. At issue is whether CCRB has proven by a preponderance of the credible evidence that Respondent’s actions amounted to a wrongful use of force. I find that they have not.

³ Patrol Guide 221-08 requires officers to “break CEW cartridge wire by hand approximately four to six inches from probe...Any probe that has penetrated the skin of any person will only be removed by medical personnel.”

Patrol Guide Section 221-01 sets forth that officers may use force “when it is reasonable to place a person in custody or to prevent escape from custody.” With regard to the use of Tasers, Patrol Guide 221-08 instructs that officers, “should use a CEW for one standard cycle (five seconds) while constantly assessing the situation to determine if subsequent cycles are necessary. Members should consider that exposure to the CEW for longer than fifteen seconds (whether due to multiple applications or continuous cycling) may increase the risk of death or serious injury. All applications must be independently justifiable, and the risks should be weighed against other force options.”

In this case, Complainant was being arrested as a suspect in connection to a serious violent crime—armed carjacking.⁴ Contrary to CCRB’s assertion, Complainant continued to actively resist after the first two Taser cycles. In fact, Complainant himself candidly admitted in his hearsay statement that he was actively trying to get away from the officers by repeatedly pulling his arms out of their grip. This is confirmed by body-worn camera footage that captured Complainant’s resistance, even after the deployment of the second prong mode cycle. The result was that it became difficult to handcuff Complainant, increasing the danger for all involved. Indeed, it is only when he is finally in handcuffs that the officers have control over Complainant and he stops pulling away. It is also at this point that Respondent stops deploying the Taser. Before that point, Complainant’s continued resistance, amidst two dogs that were jumping on and barking at the officers, justified the force used by Respondent.

It is also important to note that although he did not appear before the tribunal, Complainant told CCRB investigators that he was tased “once or twice:” the first “on my back” and then again in his chest. This assessment is consistent with Respondent’s testimony that the

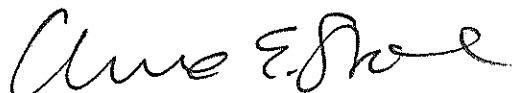
⁴ Respondent and the other officers subsequently learned that Complainant was not one of the perpetrators of the crime.

Taser was only functional for the first two deployments. Respondent spoke knowledgeably about the Department's training and policies regarding Taser use. Respondent testified credibly that at the beginning of the second prong mode cycle, the noise coming from the Taser changed, indicating that it was not working properly. He explained that the Taser can sometimes reset itself after a malfunction, and because he observed Complainant continuing to actively resist being handcuffed, he attempted a third and a fourth prong cycle. Respondents heard the same sound each time, indicating to him that those deployments were not successful.

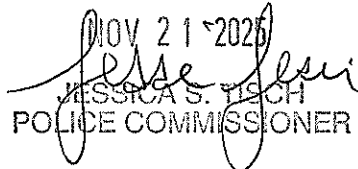
I carefully reviewed the body-worn camera footage of the incident, including the slower-speed clip entered into evidence by CCRB. The recording confirms that the sound coming from the Taser during the second prong mode cycle changes from steady and fast-paced to slower, more sporadic clicking, indicating that during the confusion, the wire came loose from the prong. The noise continued in that interrupted manner during the third and fourth cycles. The fact that the Complainant recalled only two Taser activations supports Respondent's malfunction theory.

Accordingly, the record failed to be proved by a preponderance of the credible evidence that Respondent wrongfully used force against Complainant. For the foregoing reasons, I find Respondent Not Guilty.

Respectfully submitted,



Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED
NOV 21 2025

JESSICA S. TISCH
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

September 2, 2025

Honorable Jessica S. Tisch Police Commissioner

New York City Police Department One Police Plaza

New York, NY 10038

Re: Police Officer Kyron DeLaRosa

Disciplinary Case No. 2023-29461

Dear Commissioner Tisch:

The above-referenced case was tried on July 23, 2025, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Anne E. Stone, dated August 28, 2025. I respectfully submit the following comments regarding that draft decision pursuant to Fogel v. Board of Education, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Officer Kyron DeLaRosa was charged with the following:

1. Police Officer Kyron DELAROSA, on or about July 9, 2022, at approximately 1400, while assigned to 047 PCT and on duty, in the vicinity of § 87(2)(b) § 87(2)(b) Bronx County, wrongfully used force, in that PO DELAROSA used a non-lethal restraining device on § 87(2)(b) by tasing him in prong mode for a third and fourth cycle without police necessity. (*As amended*).
PG 221-01, PAGE 3, Prohibition 2 FORCE GUIDELINES; PG 221-08 USE OF CONDUCTED ELECTRICAL WEAPONS

The Court found Officer DeLaRosa not guilty of the subject charge.

It is respectfully requested that you reject ADCT Stone's findings and find Respondent DeLaRosa guilty of the subject charge and accept CCRB's recommended penalty of the forfeiture of TWENTY (20) days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

CCRB's Exhibits

- 1) Audio of the CCRB interview of § 87(2)(b) and his mother, § 87(2)(b) dated November 30, 2022.
 - § 87(2)(b) interview begins at 08:15.
 - § 87(2)(b) interview begins at 01:00:01.
- 2) CCRB interview transcript for § 87(2)(b) and § 87(2)(b) dated November 30, 2022.
 - § 87(2)(b) interview begins on page 9.
 - § 87(2)(b) interview begins on page 50.
- 3) Officer Kyron DeLaRosa's Taser Data Sheet from the incident on July 9, 2022
- 4) Medical Treatment of Prisoner Report for § 87(2)(b) § 87(2)(a) – PHL 18(6)
- 5) Officer Kyron DeLaRosa's Body-worn Camera
- 6) Officer Kyron DeLaRosa's Body-worn Camera slowed down (.50 speed)

§ 87(2)(b) Statement

In his interview with CCRB, § 87(2)(b) stated that on July 9, 2022, at approximately 2:00 pm, he was at home playing video games when he heard a loud noise at the front door. Upon going to the front door, § 87(2)(b) saw police officers trying to gain access to the apartment by banging on the door. (Exhibit Two at 11, 15-16). When he peered through his window, § 87(2)(b) noticed officers surrounding the building, and in a panic, § 87(2)(b) went to his sister's room to call his mother, § 87(2)(b) who had gone to the supermarket. (Exhibit Two at 11, 14). But before § 87(2)(b) could contact his mother, four to five officers kicked in his front door. An officer ordered § 87(2)(b) to exit the home and stand in front of the building. (Exhibit Two at 21, 23). As § 87(2)(b) attempted to comply with the officers' instructions by walking towards the front of the building, two officers grabbed him from behind, ordered him to put his arms behind his back, and said he was under arrest. (Exhibit Two at 27-28). § 87(2)(b) explained that he asked the officers numerous

¹ § 87(2)(b) did not testify at trial in this matter. § 87(2)(b) was sixteen years old at the time of the incident and his mother, § 87(2)(b) made the CCRB complaint on his behalf.

times why he was under arrest, but they did not tell him. (Exhibit Two at 28, 30). § 87(2)(b) stated that he felt panicked, surprised and confused about the situation. (Exhibit Two at 11, 17, and 30).

§ 87(2)(b) explained that he pulled his arms away from the officers as they grabbed him because he was complying with the officer's orders to walk to the front of the building. (Exhibit Two at 31). Two officers grabbed § 87(2)(b) arms and shoulders and forced him to the floor. (Exhibit Two at 32-34). An officer behind § 87(2)(b) told him that if he did not cooperate, he would tase him. Officer DeLaRosa² then tased § 87(2)(b) once or twice in the back. § 87(2)(b) stated that two officers pulled his arms behind his back, as § 87(2)(b) continued asking the officers why they were arresting him. Officer DeLaRosa told § 87(2)(b) to stop resisting or he would tase him again. § 87(2)(b) stated that at this point, he attempted to comply by placing his hands behind his back, but the officers were hurting him by grabbing each arm. Officer DeLaRosa then placed the taser in front of § 87(2)(b) chest, and § 87(2)(b) moved his upper body to the side to avoid being tased. Officer DeLaRosa tased § 87(2)(b) again and the prongs hit his chest. Officer DeLaRosa held the taser for a few seconds before letting go. After Officer DeLaRosa let go of the taser, § 87(2)(b) was not able to breathe. The officers brought § 87(2)(b) outside and handcuffed him. (Exhibit Two at 30-40, 41-42, 44). § 87(2)(b) explained that he was taken to the hospital for treatment as a result of being tased. (Exhibit Two at 6).

SUMMARY OF RESPONDENT OFFICER KYRON DELAROSA'S TESTIMONY

On his direct examination, Respondent testified that on July 9, 2022, at approximately 2:00 pm, he responded to a radio call for assistance at a Bronx address. The FBI and New Rochelle Police Department were in hot pursuit of two suspects³ involved in an armed carjacking whom they had pursued to the apartment. Respondent stated that he went inside the residence to assist his fellow officers to place an individual (§ 87(2)(b)) who was actively resisting into custody. (Transcript at 22-23). Respondent testified that he drive-stunned § 87(2)(b) on his upper back for about two seconds. Respondent stated that following this, he attached a cartridge and deployed his taser in prong mode. Respondent confirmed that both prongs hit § 87(2)(b) in the torso. (Transcript at 23-26).

Respondent stated that based on his experience and training, one taser cycle lasts for five seconds. However, he noted that the operator can terminate the cycle prematurely. Respondent testified that when a taser is properly deployed, it results in a "fluid static tone." Respondent stated that the sound from the taser changes to a "static skipping sound" if the electrical circuit is broken or the taser is malfunctioning. (Transcript at 27-28, 32-33, 41, 55).

² Officer DeLaRosa identified himself to § 87(2)(b) as the officer who tased § 87(2)(b) (Exhibit 2 at 36).

³ Officer DeLaRosa and the other officers subsequently learned that § 87(2)(b) was not a suspect of the crime.

Respondent stated that the first prong mode deployment was successful and lasted for five seconds. Respondent testified that because § 87(2)(b) continued to actively resist after the first deployment, he pulled the trigger and tased § 87(2)(b) for a second cycle in prong mode. Respondent claimed that he heard the skipping sound a few seconds into the second cycle indicating that the taser had malfunctioned. (Transcript at 24, 26, 33). Respondent testified that despite his suspicion that the taser had malfunctioned, he pulled the trigger in prong mode for a third and then a fourth cycle. Respondent asserted that officers can “try it again if it works,” if a taser fails. Respondent claimed that he triggered the taser for a third and fourth cycle because § 87(2)(b) continued to actively resist. Respondent testified that he believed that the third and fourth cycles were not effective because they had not lasted for five seconds, and Respondent continued to hear the “skipping” sound indicating that the taser had malfunctioned. (Transcript at 24-28, 32-33, 44-46). Respondent stated that after § 87(2)(b) was handcuffed, he observed that one of the taser wires from the prongs had broken from the corresponding prong. (Transcript at 33-34). Respondent maintained that he tased § 87(2)(b) for approximately seven seconds – two seconds in drive stun mode and five seconds in prong mode. (Transcript at 25-28, 51-53).

On cross examination, Respondent admitted that prior to entering the apartment, he had not asked his fellow officers or officers from other agencies any questions about what was transpiring on the scene. Respondent stated that he did not ask § 87(2)(b) any questions despite her shouting that her son was inside the apartment. (Transcript at 37-38). Respondent admitted that prior to the third and the fourth cycles in prong mode, multiple officers held § 87(2)(b) hands behind his back (Transcript at 42-44). Respondent admitted despite the fast-moving situation; he did not give a verbal warning to § 87(2)(b) or his fellow officers before any of the five taser cycles. (Transcript at 54-55).

**RESPONDENT IS GUILTY OF WRONGFULLY USING FORCE BY TASING
§ 87(2)(b) IN PRONG MODE FOR A THIRD AND FOURTH CYCLE
WITHOUT POLICE NECESSITY**

CCRB disagrees with the Tribunal’s finding that Respondent’s action of tasing § 87(2)(b) for a third and fourth cycle in prong mode did not amount to a wrongful use of force. (Draft Decision at 8-10).

NYPD Patrol Guide Procedure 221-08 provides that “[a] Conducted Electrical Weapon (“CEW”) should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present.” Officer DeLaRosa’s body-worn camera (“BWC”) footage confirms that after the second cycle in prong mode, § 87(2)(b) was not actively resisting by flailing his arms. The BWC shows that the officers had control of § 87(2)(b) arms, which were behind his back. Similarly, the BWC shows that during the fourth cycle, § 87(2)(b) was at least partially handcuffed with both arms behind his back and completely surrounded by officers, such that his movement was restricted. As a result, the third and fourth cycles, which occurred after § 87(2)(b) had already

been tased for 13 seconds by Officer DeLaRosa, were unnecessary and increased the risk of death or serious injury to § 87(2)(b)

CCRB Exhibits one and two provide § 87(2)(b) testimony regarding what happened. § 87(2)(b) explained that on July 9, 2022, he was at home playing video games in his bedroom when he heard a loud noise at the front door. Through the window on the front door, § 87(2)(b) saw four to five officers banging on the door. Panicking, § 87(2)(b) went to his sister's room and asked her to use her phone to call his mother, § 87(2)(b) who had gone to the supermarket. Before § 87(2)(b) could call his mother, approximately four to five officers kicked the front door open and entered the apartment. The officers instructed § 87(2)(b) to leave the apartment and go outside in front of the house. § 87(2)(b) complied and attempted to leave the apartment when he was grabbed by officers who told him that he was under arrest.

CCRB Exhibit three is the Taser Data Sheet for the taser Officer DeLaRosa was equipped with on the incident date. The data sheet confirms that Officer DeLaRosa initially deployed his taser for three seconds in drive stun mode, and that 13 seconds later he deployed it for four cycles in prong mode, each cycle lasting five seconds.

NYPD Patrol Guide Procedure 221-08 states that “officers should use a CEW for one standard cycle (which is five seconds) while constantly assessing the situation to determine if subsequent cycles are necessary. Officers should consider that exposure to the CEW for longer than fifteen seconds (whether due to multiple applications or continuous cycling) may increase the risk of death or serious injury.”

Here, Officer DeLaRosa tased § 87(2)(b) for a total of 23 seconds, eight seconds longer the threshold for exposure that may increase the risk of death or serious injury. CCRB Exhibit five is the Medical Treatment of Prisoner Report. The report shows that § 87(2)(b) was taken to the hospital as a result of being tased. § 87(2)(b) suffered lacerations and needed medical assistance to remove the taser prongs.

Respondent testified that despite the scuffle between the numerous officers and § 87(2)(b) he observed that the taser began to malfunction during the second cycle. He knew this because the noise coming from the taser had changed. In fact, Respondent conveniently discovered that one of the wires had disconnected from the corresponding prong after § 87(2)(b) was handcuffed. (Emphasis added). Patrol Guide Procedure 221-08 is clear that “all applications [of the CEW] must be independently justifiable, and the risks should be weighed against other force options.” Officer DeLaRosa's BWC confirms that after the second cycle in prong mode, the officers had control of § 87(2)(b) arms, which were behind his back. And by the fourth cycle, § 87(2)(b) was at least partially handcuffed with both arms behind his back and completely surrounded by officers, such that his movement was restricted. Therefore, the third and fourth cycles in prong mode were excessive and increased § 87(2)(b) risk of death or serious injury.

In addition, Patrol Guide Procedure 221-08 also provides that “[w]hen feasible, officers should issue a verbal warning to the intended subject and other members of the service present prior to discharging the CEW.” The BWC confirms and Officer DeLaRosa testified that he did not issue a verbal warning to § 87(2)(b) prior to tasing him. Furthermore, Officer DeLaRosa did not

issue a verbal warning to his fellow officers, potentially jeopardizing the officer's safety during a fast-moving situation.

The CCRB has proved beyond a preponderance of evidence that Officer DeLaRosa is guilty of wrongfully using force against 16-year-old § 87(2)(b) by tasing § 87(2)(b) in prong mode for a third and fourth cycle without police necessity. Officer DeLaRosa failed to uphold the NYPD Patrol Guidelines sections 221-01 and 221-08. The NYPD Guidelines are not merely ideals, but essential rules to follow, especially in high-pressure situations such as this. Although Officer DeLaRosa's initial actions may be justified, he exceeded proper police conduct by wrongfully deploying force against § 87(2)(b) after his hands were behind his back and he was no longer actively resisting or posing a threat to the officer's safety.

CONCLUSION

For all the aforementioned reasons, CCRB asks you to carefully review the evidence, which strongly supports the finding of guilt on the subject charge against Police Officer Kyron DeLaRosa, and CCRB recommends the penalty of the forfeiture of TWENTY (20) days.

Respectfully submitted,

A. Baxter

Ashley Baxter, Esq.

APU Prosecutor

NYC Civilian Complaint Review Board

Administrative Prosecution Unit

Cc: Stuart London, Esq.

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